

Azad Singh Through L.R.S. Kuldeep Singh ... vs Devi Singh on 31 January, 2025

IN THE COURT OF MS. SHILPI M JAIN : DISTRICT JUDGE-05,
SOUTH WEST DISTRICT, DWARKA COURTS, NEW DELHI

RCA CIVIL DJ ADJ/1111/2024
DLSW010033042024

IN THE MATTER OF:

Azad Singh

S/o Late Sardar Singh Through his LRs:

1. Kuldeep Singh Phalswal,
S/o Late Azad Singh, RZ-82,
New Roshanpura Extension,
Najafgarh, New Delhi-110043

2. Suman W/o Sh. Baljeet Singh,
Mattan (20), Matan,
Jhajjar, Haryana-124501

3. Geeta Devi
W/o Sh. Satyawar,
H.No. 779, Bichli Gali,
Near Talab, Daultabad (53),
Daultabad, Gurugram,
Haryana-22066

.....APPELLANTS

Versus

RCA No. 1111/24 AZAD SINGH THROUGH L.R.S. V. DEVI SINGH

Pg. no. 1 of 32

1. Devi Singh
S/o Smt. Dhankaur
R/o Village & P.O. Ghuman Hera,
New Delhi-110073

2. Sh. Dharampal,
S/o Smt. Dhankaur,
Through LRS.: -
2(a) Sumitra W/o Sh. Dharampal,
2(b) Hoshiyar Singh S/o Sh. Dharampal,

2(c) Deepak S/o Sh. Dharampal,
2(d) Late Smt. Sushila @ Gyano
W/o Late Sh. Parvesh (Predeceased Daughter
of Late Sh. Dharampal)
2(d) 1 Master Himanshu
2(d) 2 Miss Himanshi
2(d) 3 Master Harsh
R/o Village & P.O. Ghuman Hera,
New Delhi-110073

3. Smt. Omwati,
W/o Sh. Mahender Singh
D/o Smt. Dhankaur
R/o Village Tikri Khurd,
New Delhi.

4. Smt. Roop Kaur
W/o Late Sh. Jor Singh,
D/o Smt. Dhankaur
R/o Village Kanuda,

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P.O. Bahadur Garh,
Haryana

5. Smt. Ishwanti
W/o Sh. Jai Singh
D/o Smt. Dhankaur
Through her LRS.: -
1) Smt. Poonam,
W/o Sh. Vinod Kumar,
R/o H.No. 816, Udan Pana,
Kanjhawla, North West,
Delhi
2) Smt. Neelam,
W/o Sh. Dharmender,
R/o Village Nasirpur Cholka, Sonapat, Haryana.
3) Sh. Pradeep, S/o Sh. Jai Singh,
4) Sh. Sandeep, S/o Sh. Jai Singh,
5) Sh. Jai Singh, S/o Sh. Gyani Ram,
Respondents No.5 (3) (5)
R/o Kanonda (33), Jhajjar Haryana.
6) Smt. Suman,
W/o Sh. Narendra,
R/o H.No.166, Bharada Mohalla,
Rambala Kaun Bankner,
North West Delhi, Delhi.
7) Smt. Manjeet,
W/o Late Sh. Jai Beer,

6. Smt. Bala,
W/o Sh. Ishwar Singh
D/o Smt. Dhankaur,
R/o Village Kanunda
P.O. Bahadur Garh,
Haryana.

.....RESPONDENTS

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ORDER

1. Being aggrieved vide order dated 07.03.2024 passed by Ld. ACJ, South West District in CS SCJ 426032/2016 whereby the Suit for declaration and permanent injunction seeking defendants/respondents illegitimate children of deceased Sardar Singh, born out of illicit relationship with Smt. Dhan Kaur as filed on behalf of the plaintiff/appellant was dismissed, present appeal preferred (hereinafter referred as 'impugned order'). In said suit, Plaintiff/Appellant sought following reliefs:

(a) Pass a decree of declaration in favour of the plaintiff and against the defendants/respondents thereby declaring the defendants/respondents as illegitimate children of deceased Sardar Singh born out of illicit relations with Smt. Dhan Kaur without any marriage with deceased sardar Singh hence are not entitle to inherit the estate of deceased Sardar Singh and further declare the mutation order dated 22.06.2013 passed by Tehsildar, Kapashera, New Delhi, in case Misal No. M-71/CO/TKH/2012-13 as null and void-ab-initio and cancel;

(b) A decree of permanent injunction in favour of the plaintiff and against the defendants/respondents thereby restraining the defendants, their associates, representatives, nominees, assignees etc. from selling, alienating, transferring, assigning or creating third party interest in the suit property;

(a) Costs of the suit may also be awarded in favour of the plaintiff and against the defendants;

(b) Any other or further reliefs which this Hon'ble Court may deem fit and proper in the facts and circumstances of the case may also be passed, in the interest of justice.

RCA No. 1111/24 AZAD SINGH THROUGH L.R.S. V. DEVI SINGH Pg. no. 5 of 32 FACTUAL BACKGROUND

2. Facts which are imperative to be considered are succinctly recapitulated as follows: It is the case of the plaintiff/Appellant that Late Sardar Singh @ Sardar was Bhumidar with respect to 1/3rd share in agricultural land admeasuring 31 Biswa. It is further stated that, after the death of Late Sardar Singh, plaintiff/Appellant became the absolute owner in respect to the share of Late Sardar Singh being sole legal heir. It is further stated that, Late Sh. Gyani was Bhumidar of entire agricultural land and after his demise, his three sons namely Attar Singh, Sardar Singh and Raghubir Singh inherited the same w.r.t. the 1/3rd share each. It is further submitted that, Sh. Attar Singh left for heavenly abode in 1945 leaving behind Dhankaur and Kartar Singh as Class-I Legal Heirs. It is further submitted that, after the death of Attar Singh, his widow Dhankaur extended illicit relationship with deceased Sardar Singh during the lifetime of wife of Sardar Singh and begotten four daughters and two sons i.e. defendants/Respondents herein. It is further submitted that, mother of plaintiff/Appellant strongly objected to the illicit relationship of Late Sh. Sardar Singh with Dhankaur during his lifetime but they failed to mend their ways.

3. It is further submitted that, on humanitarian ground plaintiff/Appellant agreed to divide 1/3rd undivided share of deceased Sardar Singh into two equal shares i.e. 1/2 share in favour of plaintiff/Appellant and 1/2 share in favour of defendants/Respondents. It is further submitted that, plaintiff/Appellant is of 60 years of age and an innocent layman having no knowledge about precedents and defendants/Respondents got mutation in their name after taking signature of the plaintiff/Appellant. It is further submitted that, now defendants/Respondents are trying to sell their share in the agricultural RCA No. 1111/24 AZAD SINGH THROUGH L.R.S. V. DEVI SINGH Pg. no. 6 of 32 land left behind by deceased Sardar Singh despite the fact that they are illegitimate children.

4. As per the trial court record, defendants/Respondents filed separate WS i.e. one WS filed on behalf of the defendant no. 1/Respondent No. 1 and other by defendant no. 2/Respondent No. 2. In WS, the contention of defendants/Respondents are three fold. Firstly, suit filed by the plaintiff/Appellant is not maintainable barred by law of limitation, Estoppel and non-joinder of necessary parties. Secondly, defendants/Respondents are born out of the valid wedlock of Late Sardar Singh and Dhankaur as per custom (karwa marriage) prevalent in Hindu Society before enactment of Hindu Marriage Act. Thirdly, the entire claim of the plaintiff/Appellant is based upon false and frivolous applications and to be dismissed with heavy cost as defendants/Respondents are legitimate and entitled for the property left by their parents.

ISSUES BEFORE LD. TRIAL COURT

5. Vide order dt. 22.12.2017, following issues were framed by Ld. Trial Court:

- i. Whether the suit of the plaintiff is barred by limitation? (OPD)
- ii. Whether the suit of the plaintiff is bad for non joinder of necessary parties more specifically Smt. Dhan Kaur i.e. mother of the defendants? (OPD)
- iii. Whether a factum of marriage (void/voidable) is essential for the purposes of applicability of Section 16 of Hindu Marriage Act, 1955 (OPP)
- iv. Whether a Karava marriage took place between Late Sh. Sardar Singh and Smt. Dhan Kaur i.e. mother of defendants? (OPD)
- v. Relief.

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LD. TRIAL COURT ORDER

6. Upon appreciating the material on record, Ld. Trial Court dismissed the suit instituted by plaintiff/Appellant in following terms:

- a) Admittedly, plaintiff born on 06.10.1954 and attained age of majority on 10.10.1972 and after the said date, plaintiff had optioned to sue against defendants/respondents for challenging their legitimacy. But, the present suit filed on 26.07.2014 i.e. after delay of 38 years and 9 months. Thus, suit for declaration against legitimacy of defendant for the purpose of having benefit of coparcenary right in the property inherited from his grand father got expired in 1935 and present suit is time barred.

b) Since, present suit challenged legitimacy of defendants/respondents who begotten by Smt. Dhan Kaur with Late Sardar Singh but Smt. Dhan Kaur has not been impleaded as a party despite objection of the defendants. Hence, present suit is barred due to non-joinder of necessary party.

c) Children out of void or voidable marriage cannot claim the coparcenary right in property of other members of family except their father, as per Sec. 16 of Hindu Marriage Act 1955 (HMA) and same is extensively dealt by Hon'ble Supreme Court of India in judgment titled as Revanasiddappa and Anr. Vs. Mallikarjun and Others (2011) 11 SCC.

d) It is established that Late Sardar Singh and Smt. Dhan Kaur were residing as husband and wife in the same house with intention to RCA No. 1111/24 AZAD SINGH THROUGH L.R.S. V. DEVI SINGH Pg. no. 8 of 32 carry forward the social family life as husband and wife and also begotten six children apart from plaintiff which establish the fact of "Kareva Marriage"

SUBMISSIONS OF THE PARTIES

7. Ld. Counsel for appellant submits that, Ld. Trial Court is erred while dismissing the suit as after the death of Late Sardar Singh, original plaintiff became co-sharer in total holding of 31 Bigha and 6 Biswa to the extent of 1/3rd share left by deceased father of plaintiff namely Sh. Gyani. It is further submitted that, Late Smt. Dhan Kaur kept getting pension from government of India being widow of Late Attar Singh. It is also submitted that, right of plaintiff are severally effected as Late Smt. Dhan Kaur not only enjoyed/inherited 1/3rd share of Late Attar Singh being her widow but, also claiming share qua Late Sardar Singh. It is further submitted that, only Late Bhateri Devi was legally wedded wife of deceased Sardar Singh i.e. mother of original plaintiff. Hence, plaintiff had absolute right on the share left by deceased Sardar Singh. It is also submitted that, Ld. Trial Court is gravely erred while holding that present suit is time barred. It is further submitted that, present suit is filed only after when possession of defendant became adverse to the plaintiff/appellant. It is submitted that in 2013, Sh. Sardar Singh expired and only then, mutation application filed. It is also submitted that, in each affidavit, respondents misrepresented Late Bhateri Devi as their mother. Thus, cause of action arisen only in 2013 when the right accrued in favour of plaintiff/appellant.

8. Ld. Counsel for appellant also submitted that since issue no. 3 has been decided in favour of plaintiff in terms of Revanasiddappa & RCA No. 1111/24 AZAD SINGH THROUGH L.R.S. V. DEVI SINGH Pg. no. 9 of 32 Anr Vs Mallikarjun & Ors.1, all other issues ought to be decided in favour of appellant and suit should have been decreed in favour of appellant. It is further submitted that, Ld. Trial Court while adjudicating issue no. 4 failed to appreciate that the onus of issue no. 4 is upon respondents which they failed to discharge. It is also submitted that, Ld. Trial Court wrongly relied upon the testimony of PW1 and failed to give proper findings while dismissing suit of the plaintiff/appellant.

9. Per contra, Ld. Counsel for respondents submitted that the appellant (Deceased) through LR's have failed to disclose any sufficient and cogent ground in the appeal for setting aside/reversing of the impugned order/judgment. It is further submitted that the impugned judgment has been passed by the Ld. Trial Court after considering the facts and circumstances of the case put forth by the parties and the Judgment is perfect and legal, thus, the same deserves to be upheld by this Hon'ble Court. It is further submitted that after the death of Shri Attar Singh brother of Attar Singh namely Shri Sardar Singh performed "Kareva Marriage" with Smt. Dhan Kaur in the initial year 1946, as per custom prevalent in the Hindu Society and which was a valid marriage before passing of Hindu Marriage Act 1955. The said marriage of Shri Sardar Singh and Smt. Dhan Kaur was duly accepted by all the family members, relatives and social circle as well as mother of plaintiff (Smt. Bhateri) first wife of Shri Sardar Singh who had no child at that time i.e. in the year 1946.

10. It is further submitted that, after the said marriage Sh. Sardar Singh and Smt. Dhan Kaur, the respondent No.1 was born to them out of their wedlock on 03.05.1947 i.e. about 6-7 years before the 2023 SCC ONLINE SC 1087 RCA No. 1111/24 AZAD SINGH THROUGH L.R.S. V. DEVI SINGH Pg. no. 10 of 32 birth of the original plaintiff out of the wedlock of Smt. Bhateri. Thereafter the original defendant No. 2 to 6 were also born from the wedlock of Shri Sardar Singh and Smt. Dhan Kaur. It is further submitted that Shri Sardar Singh had three sons and four daughters from his two wives. Shri Sardar Singh along with his two wives and all the children were residing together and in the same house and all were brought up, got education and settle in their lives by Shri Sardar Singh and both his wives during their lives time. It is further submitted that, pedigree table as shown by the appellant is totally incorrect and not admitted by the respondent No. 1.

11. It is submitted that the appellant has intentionally not shown the respondents and their mother Smt. Dhan Kaur as the legal hers of Late Sardar Singh despite the fact that mother of respondents was the legally wedded wife and the respondents are the legitimate children born from their wedlock. It is further submitted that appellant in his cross examination dated 23.11.2016 have clearly admitted as "it is correct that Devi Singh i.e. Defendant No.1 is my elder brother". In his cross examination the appellant further admitted that "it is correct that the villagers used to call myself and Devi Singh as son of Sardar Singh" the admission of appellant is sufficient to dismiss the present appeal as he himself have admitted that the respondent No.1 as his brother not a step sibling.

ANALYSIS AND FINDINGS

12. Before going ahead, it is imperative to discuss pedigree of the parties in disputes i.e. as follows:

RCA No. 1111/24 AZAD SINGH THROUGH L.R.S. V. DEVI SINGH Pg. no. 11 of 32
LATE SMT. PATO (W/O LATE SH. GYANI LATE SH. GYANI) LATE SMT. BHATERI
W/O LATE ATTAR SINGH LATE SMT. DANKAUR W/O LATE LATE SARDAR
LATE SARDAR SINGH CHANNO DEVI W/O (EXPIRED IN THE ATTAR SINGH
(EXPIRED IN THE SINGH (DOD RAGHUBIR SINGH (EXPIRED IN THE YEAR
RAGHUBIR SINGH YEAR 1945) YEAR 2019) 24.09.2012) 1984) KARTAR SINGH
S/O LATE AZAD SINGH (S/O LATE SARDAR SINGH) SINCE DECEASED

PLAINTIFF/APPELLANT IN NIHAL S/O RABHUBIR ATTAR SINGH THE YEAR 2021 (DATE OF BIRTH 06.10.1954) SINGH KULDEEP (LR (a) OF DECEASED RAMESH S/O RABHUBIR APPELLANT/PLAINTIFF) SINGH SUMAN (LR (b) OF DECEASED RAJPAL S/O RABHUBIR APPELLANT/PLAINTIFF) SINGH GEETA (LR (b) OF DECEASED SRIPAL S/O RABHUBIR APPELLANT/PLAINTIFF) SINGH

13. Defendants/Respondents are children/LRs of deceased children of Late Smt. Dhankaur and Late Sh. Sardar Singh out of which Respondent No. 1 born on 03.05.1947 i.e. prior to the birth of Late Azad Singh. Appellant/plaintiff is seeking decree of declaration thereby declaring respondents as illegitimate children of deceased Sardar Singh being born out of illicit relationship with Smt. Dhan Kaur. It is settled that 'paternity' and 'legitimacy' are distinct concepts. While legitimacy can be determined through a legal presumption, paternity is a matter of science.

MAXIM 'pater est quem nuptiae demonstrant'

14. The presumption of legitimacy comes from the maxim, "pater est quem nuptiae demonstrant" which means, "he is the father whom the marriage indicates to be so." Since time immemorial, English Courts upheld that where a husband and wife cohabited and no evidence of impotency was forthcoming, the child is conclusively presumed to be legiti-

RCA No. 1111/24 AZAD SINGH THROUGH L.R.S. V. DEVI SINGH Pg. no. 12 of 32 mate even though the wife is known to have been guilty of infidelity. 2 In this vein, this court agree that scientifically and technically, a legitimate child, i.e. one born during the subsistence of a valid marriage between two persons. In present matter, appellants nowhere disputed the paternity as it is admitted fact that, respondents are biological children of Late Sardar Singh. Objections of plaintiff/Appellant are two folds:

- firstly, No Kareva Marriage was performed between Late Sh. Sardar Singh and Late Dhan Kaur;

- Secondly, even if Kareva Marriage is deemed to be performed, same is invalid and void ab initio as Late Sh. Sardar Singh was already married to Late Bhateri i.e. mother of plaintiff/appellant.

CONCEPT OF KAREVA MARRIAGE

15. A "Kareva" marriage is with the brother or some other male relative of the deceased husband.³ It was defined way back by Sir WH Rattigan⁴, before the partition of India took place, as follows:

'A "Kareva" marriage with the brother or some other male relative of the deceased husband requires no religious ceremonies, and confers all the rights of a valid marriage.'

16. Customary Kareva marriages, is a brief marriage ceremony which is basically handing over the bride to the bridegroom. This custom of low-key marriages is uniformly followed within the Jatts and certain sections of the Sikh community and is an established ongoing practice of Kareva marriages within the Sikh community. There is no dispute as to the validity of such a custom. This customary wedding ceremony is Halsbury's Laws of England, Children, Volume 9, 2023 See Para 75 of Rattigan's Digest of Customary Law (14th ed.) page 475 WH Rattigan A Digest of Customary Law (Allahabad: University Book Agency, 15th edn, revised by Prakash Aggarawala, with a foreword by Dr Bakshi Tek Chand, 1989) para 75 of ch 5.' RCA No. 1111/24 AZAD SINGH THROUGH L.R.S. V. DEVI SINGH Pg. no. 13 of 32 generally a small low-key ceremony. Given the circumstances of such a wedding, no celebrations are held at all. No guests are invited nor are any pictures taken at all. These Kareva marriages, generally as per custom, are usually performed in such a low-key manner.

17. Traditionally, one of the prime objectives of such a customary marriage is the rehabilitation of the widow within the family fold, and to retain the land holding within the family fold.

18. Hon'ble Supreme Court in Harihar Prasad Singh And Ors vs Balmiki Prasad Singh And Ors⁵ has traced the history of the usage of the family customs, also placing reliance on some of the very early decisions of the Privy Council:

'6. Now on whom does the burden rest and what is the scope of the evidence that is admissible? The earliest decision on the question regarding proof of custom in variance of the general law is found in Ramalakshmi Ammal v Shivanatha Perumal (1872) 14 Moo. Ind. App. 570 at p 585 (PC) to the effect:

"It is of the essence of special usages modifying the ordinary law of succession that they should be ancient and invariable; and it is further essential that they should be established to be so by clear and unambiguous evidence. It is only by means of such evidence that the Courts can be assured of their existence, and that they possess the conditions of antiquity and certainty on which alone their legal title to recognition depends."

This passage was quoted by this court with the approval in its decision in Pushpavathi Vijayaram v P Visweswar⁶ and this court went on further to observe:

'In dealing with the family custom, the same principle will have to be applied, though, of course, in the case of a family custom, instances in support of the custom may not be as many or as frequent as in the case of customs pertaining to a territory or to 1975 SCR (2) 932 RCA No. 1111/24 AZAD SINGH THROUGH L.R.S. V. DEVI SINGH Pg. no. 14 of 32 the community or to the character of any estate. In dealing with family customs, the consensus of opinion amongst the members of the family, the traditional belief entertained by them and acted upon by them, their statements, and their conduct would all be relevant and it is only where the relevant evidence of such a character appears to the Court to be sufficient that a specific family custom pleaded in a particular case would be held to be proved, Abdul Hussein Khan v Bibi Sona, (45

Ind. App.10= AIR 1917 PC 181).'

19. Admittedly, parties to the present appeal pertain to Jat community wherein husband of Late Dhankaur namely Late Attar Singh was serving as Sepoy in the 1st Jat Regiment, Indian Army of British Empire and left for heavenly abode in the year 1945. It is also not disputed that, at the time of demise of Late Attar Singh, Late Sh. Sardar Singh was already validly married to Late Bhateri. Therefore, it is necessary to probe into the facets of the issue whether Kareva Marriage still be stated to be valid once other spouse of the husband is alive before enactment of Hindu Marriage Act, 1955.

CONCEPT OF POLYGAMY PRIOR TO HINDU MARRIAGE ACT,

20. Polygamy comes from two words: "poly," which means "many," and "gamos," which means "marriage." As a result, polygamy relates to marriages that are several. Section 5 (1) of the Hindu Marriage Act, 1955 provides the rule of monogamy and prohibits polygamy and polyandry. Before this Act, Hindu could marry any number of wives, even if he had a wife or wives living.⁶ But Hindu Marriage Act, 1955 abolished polygamy. In *M.M. Malhotra v. Union of India*⁷, the Supreme Court held that bigamous marriages are void.

Viraswami v. Appaswami, (1863) 1 Mad HC 375 (2005) 8 SCC 351 RCA No. 1111/24 AZAD SINGH THROUGH L.R.S. V. DEVI SINGH Pg. no. 15 of 32 Bigamy is an offence after the enactment of HMA, 1955. Sec. 17 of Hindu Marriage Act read with Sec. 494 and 495 of Indian Penal Code, 1860⁸ provides the wife or husband punishment for committing the offence of bigamy.⁹ The Supreme Court held that the marriage becomes null and void where it is in violation of the first condition of Section 5 (1)¹⁰. It becomes void ab initio and ipso facto.

Section 82 of Bhartiya Nyaya SANHITA, 2023 Marrying again during lifetime of husband or wife.

(1) Whoever, having a husband or wife living, marries in any case in which such marriage is void by reason of its taking place during the life of such husband or wife, shall be punished with imprisonment of either description for a term which may extend to seven years, and shall also be liable to fine. Exception.---This sub-section does not extend to any person whose marriage with such husband or wife has been declared void by a Court of competent jurisdiction, nor to any person who contracts a marriage during the life of a former husband or wife, if such husband or wife, at the time of the subsequent marriage, shall have been continually absent from such person for the space of seven years, and shall not have been heard of by such person as being alive within that time provided the person contracting such subsequent marriage shall, before such marriage takes place, inform the person with whom such marriage is contracted of the real state of facts so far as the same are within his or her knowledge.

(2) Whoever commits the offence under sub-section (1) having concealed from the person with whom the subsequent marriage is contracted, the fact of the former marriage, shall be punished with imprisonment of either description for a term which may extend to ten years, and shall also be liable to fine.

Ramesh Chandra Rampratapji Daga v. Rameshwari Ramesh Chandra Daga, (2005) 2 SCC 33.

Section 5, Hindu Marriage Act, 1955 :Conditions for a Hindu marriage. A marriage may be solemnized between any two Hindus, if the following conditions are fulfilled, namely:

- (i) neither party has a spouse living at the time of the marriage;
- [(ii) at the time of the marriage, neither party
 - (a) is incapable of giving a valid consent to it in consequence of unsoundness of mind; or
 - (b) though capable of giving a valid consent, has been suffering from mental disorder of such a kind or to such an extent as to be unfit for marriage and the procreation of children; or
 - (c) has been subject to recurrent attacks of insanity ^{2 ***}];
- (iii) the bridegroom has completed the age of 3[twenty-one years] and the bride, the age of 4[eighteen years] at the time of the marriage;
- (iv) the parties are not within the degrees of prohibited relationship unless the custom or usage governing each of them permits of a marriage between the two;

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21. First prayer of plaintiff is ' Pass a decree of declaration in favour of the plaintiff and against the defendants/respondents thereby declaring the defendants/respondents as illegitimate children of deceased Sardar Singh born out of illicit relations with Smt. Dhan Kaur without any marriage with deceased sardar Singh hence are not entitle to inherit the estate of deceased Sardar Singh and further declare the mutation order dated 22.06.2013 passed by Tehsildar, Kapashera, New Delhi, in case Misal No. M-71/CO/TKH/2012-13 as null and void-ab-initio and cancel;' Thus, by way of his suit, Plaintiff is challenging the validity of marriage of deceased Sardar Singh and Late Dhan Kaur so that, respondents would not get coparcenary right in the share of deceased Sardar Singh.

22. What is important to note here, all necessary parties whose presence before the Trial Court might be necessary in order to enable the Court effectually and completely to adjudicate upon and settle all the questions involved in the suit, already expired. So the important question is who can challenged the validity of marriage? Till when validity of said marriage can be challenged? Whether person whose validity of marriage is challenged is not necessary party to said proceedings?

IMPLICATION FOR NON JOINDER OF NECESSARY PARTY

23. It is well settled law that, no suit shall be defeated by reason of misjoinder or non-joinder of parties, and the Court may in every suit deal with the matter in controversy so far as regards the rights and

(v) the parties are not sapindas of each other, unless the custom or usage governing each of them permits of a marriage between the two;

RCA No. 1111/24 AZAD SINGH THROUGH L.R.S. V. DEVI SINGH Pg. no. 17 of 32 interests of the parties actually before it. But, nothing applies to non joinder of necessary party¹¹

24. Hon'ble Supreme Court of India in the matter of Mumbai International Airport Private Limited v. Regency Convention Centre and Hotels Private Limited and Others¹² held as follows:

'8. The general rule in regard to impleadment of parties is that the plaintiff in a suit, being dominus litis, may choose the persons against whom he wishes to litigate and cannot be compelled to sue a person against whom he does not seek any relief. Consequently, a person who is not a party has no right to be impleaded against the wishes of the plaintiff. But this general rule is subject to the provisions of Order I Rule 10(2) of Code of Civil Procedure ('Code' for short), which provides for impleadment of proper or necessary parties.'

25. In the considered opinion of this court, Late Smt. Dhan Kaur is the necessary party to the trial court proceedings in absence of whom, suit could not be adjudicated. Record reveals that, suit was instituted in the year 2014 and Late Smt. Dhan Kaur was very much alive till the year 2019 but, no steps taken by plaintiffs/appellant to implead her as necessary party.

26. Further, this court carefully gone through the entire trial court record and the submissions made by the parties. In trial court proceedings, Ld. Trial Court broadly framed four issues i.e. i) whether the suit of plaintiff is barred by limitation? OPD, ii) Whether suit of plaintiff is bad for non-joinder of necessary parties, more specifically

9. Misjoinder and non-joinder.--No suit shall be defeated by reason of the misjoinder or non-joinder of parties, and the Court may in every suit deal with the matter in controversy so far as regards the rights and interests of the parties actually before it. [Provided that nothing in this rule shall apply to non-joinder of a necessary party.] AIR 2010 SUPREME COURT 3109 RCA No. 1111/24 AZAD SINGH THROUGH L.R.S. V. DEVI SINGH Pg. no. 18 of 32 Smt. Dhan Kaur i.e. mother of the defendants? OPD, iii) Whether factum of marriage (void/voidable) is essential for the purpose of applicability of Sec. 16 of Hindu Marriage Act, 1955? OPP, iv) Whether a Kareva Marriage took place between late Sh. Sardar Singh and Smt. Dhan Kaur i.e. mother of defendants? OPD.

27. In the considered opinion of this court, issue no. 3 is purely legal in nature and correctly adjudicated by Ld. Trial Court in following terms:

' iii Whether a factum of marriage (void/voidable) is essential for the purposes of applicability of Section 16 of Hindu Marriage Act, 1955? (OPP) The onus to prove issue no. (iii) was upon plaintiff. The plaintiff got examined himself as PW-1. The contention raised by issue no. (iii) is the legal contention. During course of arguments the plaintiff has relied upon the judgment titled as Revanasiddappa and Anr. Vs Mallikarjun-and Ors. Civil Appeal no. 2844 of 2011 passed by Hon'ble Supreme court of India on 01.09.2023. The Court is forfeited with the above judgment wherein it is held that whether the marriage is void or voidable the children out of that wedlock are always legitimate and have the co-parcenary rights to the extent of the property inherited to their father but not above that line of that of father. The children out of void or voidable marriage cannot claim the co-parcenary right in the property of other members of family except their father so the law relating to Section 16 of HMA, 1955 has been extensively dealt with in above judgment by Hon'ble Supreme Court of India and accordingly, the issue no.

(iii) is decided in favour of plaintiff.' RCA No. 1111/24 AZAD SINGH THROUGH L.R.S. V. DEVI SINGH Pg. no. 19 of 32

28. While interpreting Section 16 of the Hindu Marriage Act, 1955 (HMA)¹³, which deals with the legitimacy of children born from void or voidable marriages, Hon'ble Supreme court of India, in its 3 bench decision in Revanasiddappa & Anr Vs Mallikarjun & Ors.¹⁴, held that children from void and voidable marriages would only be entitled to inherit the self-acquired property of their parents and not the Hindu Joint Family. In said landmark judgment it was concluded as follows:

'54. We now formulate our conclusions in the following terms:

(i) In terms of sub-section (1) of Section 16, a child of a marriage which is null and void under Section 11 is statutorily conferred with legitimacy irrespective of whether (i) such a child is born before or after the commencement of Amending Act 1976; (ii) a decree of nullity is granted in respect of that marriage under the Act and the marriage is held to be void otherwise than on a petition under the enactment;

(ii) In terms of sub-section (2) of Section 16 here a voidable marriage has been annulled by a decree of nullity under Section 12, a child 'begotten or conceived' before the decree has been made, is deemed to be their legitimate child notwithstanding the decree, if the child would have been legitimate to the parties to the marriage if a decree of dissolution had been passed instead of a decree of nullity;

Section 16. Legitimacy of children of void and voidable marriages.--

(1) Notwithstanding that a marriage is null and void under section 11, any child of such marriage who would have been legitimate if the marriage had been valid, shall be legitimate, whether such child is born before or after the commencement of the Marriage Laws (Amendment) Act, 1976 (68 of 1976), and whether or not a decree of nullity is granted in respect of that marriage under this Act

and whether or not the marriage is held to be void otherwise than on a petition under this Act.

(2) Where a decree of nullity is granted in respect of a voidable marriage under section 12, any child begotten or conceived before the decree is made, who would have been the legitimate child of the parties to the marriage if at the date of the decree it had been dissolved instead of being annulled, shall be deemed to be their legitimate child notwithstanding the decree of nullity.

(3) Nothing contained in sub-section (1) or sub-section (2) shall be construed as conferring upon any child of a marriage which is null and void or which is annulled by a decree of nullity under section 12, any rights in or to the property of any person, other than the parents, in any case where, but for the passing of this Act, such child would have been incapable of possessing or acquiring any such rights by reason of his not being the legitimate child of his parents.

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(iii) While conferring legitimacy in terms of sub-section (1) on a child born from a void marriage and under sub-section (2) to a child born from a voidable marriage which has been annulled, the legislature has stipulated in sub-section (3) of Section 16 that such a child will have rights to or in the property of the parents and not in the property of any other person;

(iv) While construing the provisions of Section 3(1)(j) of the HSA 1956 including the proviso, the legitimacy which is conferred by Section 16 of the HMA 1955 on a child born from a void or, as the case may be, voidable marriage has to be read into the provisions of the HSA 1956. In other words, a child who is legitimate under sub-section (1) or sub-section (2) of Section 16 of the HMA would, for the purposes of Section 3(1)(j) of the HSA 1956, fall within the ambit of the explanation 'related by legitimate kinship' and cannot be regarded as an 'illegitimate child' for the purposes of the proviso;

(v) Section 6 of the HSA 1956 continues to recognize the institution of a joint Hindu family governed by the Mitakshara law and the concepts of a coparcener, the acquisition of an interest as a coparcener by birth and rights in coparcenary property. By the substitution of Section 6, equal rights have been granted to daughters, in the same manner as sons as indicated by sub-section (1) of Section 6;

(vi) Section 6 of the HSA 1956 provides for the devolution of interest in coparcenary property. Prior to the substitution of Section 6 with effect from 9 September 2005 by the Amending Act of 2005, Section 6 stipulated the devolution of interest in a Mitakshara coparcenary property of a male Hindu by survivorship on the surviving members of the coparcenary. The exception to devolution by survivorship was where the deceased had left surviving a female relative specified in Class I of the Schedule or a male relative in Class I claiming through a female relative, in which event the interest of the deceased in a Mitakshara coparcenary property would devolve by testamentary or intestate succession and not by survivorship. In terms of sub-section (3) of Section 6 as amended, on a Hindu dying after the commencement of the Amending Act of 2005 his interest in the property of a Joint Hindu family governed by the Mitakshara law will devolve by testamentary or intestate succession,

as the case may be, under the enactment and not by survivorship. As a consequence of the substitution of Section 6, the rule of devolution by RCA No. 1111/24 AZAD SINGH THROUGH L.R.S. V. DEVI SINGH Pg. no. 21 of 32 testamentary or intestate succession of the interest of a deceased Hindu in the property of a Joint Hindu family governed by Mitakshara law has been made the norm;

(vii) Section 8 of the HSA 1956 provides general rules of succession for the devolution of the property of a male Hindu dying intestate. Section 10 provides for the distribution of the property among heirs of Class I of the Schedule. Section 15 stipulates the general rules of succession in the case of female Hindus dying intestate. Section 16 provides for the order of succession and the distribution among heirs of a female Hindu;

(viii) While providing for the devolution of the interest of a Hindu in the property of a Joint Hindu family governed by Mitakshara law, dying after the commencement of the Amending Act of 2005 by testamentary or intestate succession, Section 6 (3) lays down a legal fiction namely that 'the coparcenary property shall be deemed to have been divided as if a partition had taken place'. According to the Explanation, the interest of a Hindu Mitakshara coparcener is deemed to be the share in the property that would have been allotted to him if a partition of the property has taken place immediately before his death irrespective of whether or not he is entitled to claim partition;

(ix) For the purpose of ascertaining the interest of a deceased Hindu Mitakshara coparcener, the law mandates the assumption of a state of affairs immediately prior to the death of the coparcener namely, a partition of the coparcenary property between the deceased and other members of the coparcenary. Once the share of the deceased in property that would have been allotted to him if a partition had taken place immediately before his death is ascertained, his heirs including the children who have been conferred with legitimacy under Section 16 of the HMA 1955, will be entitled to their share in the property which would have been allotted to the deceased upon the notional partition, if it had taken place; and

(x) The provisions of the HSA 1956 have to be harmonized with the mandate in Section 16(3) of the HMA 1955 which indicates that a child who is conferred with legitimacy under sub-sections (1) and (2) will not be entitled to rights in or to the property of any person other than the parents. The property of the parent, where the parent had an interest in the property of a Joint Hindu family governed under the Mitakshara law RCA No. 1111/24 AZAD SINGH THROUGH L.R.S. V. DEVI SINGH Pg. no. 22 of 32 has to be ascertained in terms of the Explanation to sub-section (3), as interpreted above.' (emphasis is mine)

29. In Trial Court proceedings, appellant was mainly seeking decree of declaration against respondents to declare them illegitimate children of deceased Sardar Singh being born out of illicit relationship with Smt. Dhan Kaur as well as decree of declaration to declare Mutation Order dt. 22.06.2016 as null and void ab initio.

30. However, in the plaint, plaintiff specifically averred as follows:

"6. That as the above six children born out from the illicit relations of deceased Sardar Singh and Smt. Dhan Kaur have no right, title of interest whatsoever in the ancestral properties. acquired by deceased Sardar Singh but on humanitarian grounds the plaintiff became ready to divide the 1/3rd undivided share of deceased Sardar Singh into two equal shares i.e. share to the plaintiff and share to Sh. Devi Singh and Sh. Dharampal illegal brothers.

7. That the plaintiff is aged about 60 years and innocent layman having no knowledge about proceedings and therefore the alleged brothers. and sisters of the plaintiff got signed the affidavit of the applicant and submitted the same Tehsildar, Kaspashera and got mutated their names in the revenue records without any right title or interest. It is relevant to mention here that on the promises and assurances of the defendants, the plaintiff not only signed the affidavit and application for mutation but also appeared before Tehsildar for mutation. It is further relevant to mention here that after mutation of their names in the revenue records, the defendants changed their color and became adamant to the land mutated in their names and refused to give share to the plaintiff.

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8. That the plaintiff is an innocent layman and could not smell the foul play of the alleged brothers and sisters for the mutation of 1/3rd share of Late Sardar Singh and got mutated their names in the revenue fraud upon the plaintiff. records by playing a fraud upon the plaintiff."

31. At this juncture, it is imperative to refer the law for Declaration and Cancellation.

LAW FOR DECLARATION AND CANCELLATION

32. Section 31(1) of the Specific Relief Act, 1963¹⁵ deals with cancellation of documents. The purpose of cancellation of instruments under the Specific Relief Act of 1963 is to serve justice to the parties who are in a fear of being harmed or are actually being harmed by the other party due to the performance of such instrument/contract. Cancellation of documents/instruments means the nullification of a written document which is proof of a transaction between the parties.

33. Section 34, Specific Relief Act 1963 provides that a suit against any person denying or interested to deny the plaintiffs' title to the legal character or right to any property can be filed. To obtain the relief of declaration the plaintiff must establish that (1) the plaintiff was at the time of the suit entitled to any legal character or any right to any

31. When cancellation may be ordered.-- (1) Any person against whom a written instrument is void or voidable, and who has reasonable apprehension that such instrument, if left outstanding may cause him serious injury, may sue to have it adjudged void or voidable; and the court may, in its discretion, so adjudge it and order it to be delivered up and cancelled.

34. Discretion of court as to declaration of status or right.--Any person entitled to any legal character, or to any right as to any property, may institute a suit against any person denying, or interested to deny, his title to such character or right, and the court may in its discretion make therein a declaration that he is so entitled, and the plaintiff need not in such suit ask for any further relief:

Provided that no court shall make any such declaration where the plaintiff, being able to seek further relief than a mere declaration of title, omits to do so.

RCA No. 1111/24 AZAD SINGH THROUGH L.R.S. V. DEVI SINGH Pg. no. 24 of 32 property (ii) the defendant had denied or was interested in denying the character or the title of the plaintiff, (iii) the declaration asked for was a declaration that the plaintiff was entitled to a legal character or to a right to property (iv) the plaintiff was not in a position to claim a further relief than a bare declaration of his title. It is a discretionary relief.

34. Hon'ble Supreme Court of India in Deccan Paper Mills Co.

Ltd. V Regency Mahavir Properties, Civil Appeal No 5147 of 2016 observed that document though not necessary to be set aside may, if left outstanding, be a source of potential mischief. The jurisdiction under section 39 of the Specific Relief Act, 1877 (which is the pari materia provision to section 31 of the 1963 Act) is a protective or a preventive one. It is to prevent a document to remain as a menace and danger to the party against whom under different circumstances it might have operated.

35. Similarly, in Suhrid Singh V Randhir Singh¹⁷, Hon'ble Supreme Court held that where the executant of a deed wants it to be annulled, he has to seek cancellation of the deed. But if a non-executant seeks annulment of a deed, he has to seek a declaration that the deed is invalid, or non est, or illegal or that it is not binding on him. In Deccan Paper Mills Co. Ltd (supra), it was observed that the expression "any person" does not include a third party, but is restricted to a party to the written instrument or any person who can bind such party. It was further observed as under:

"The incongruous result of section 31 of the Specific Relief Act being held to be an in rem provision. When it comes to cancellation of a deed by an executant to the document, such person can approach the Court under section 31, but (2010) 12 SCC 112 RCA No. 1111/24 AZAD SINGH THROUGH L.R.S. V. DEVI SINGH Pg. no. 25 of 32 when it comes to cancellation of a deed by a non-executant, the non-executant must approach the Court under section 34 of the Specific Relief Act, 1963. Cancellation of the very same deed, therefore, by a non-executant would be an action in personam since a suit has to be filed under section

34. However, cancellation of the same deed by an executant of the deed, being under section 31, would somehow convert the suit into a suit being in rem."

36. Careful perusal of mutation proceedings reveals that the plaintiff himself claims as sibling of the respondents and given affidavit to that effect but, now taking plea of innocence having no knowledge about the consequences of said proceedings.

DOCTRINE OF ESTOPPEL

37. Section 121 of Bharatiya Sakshya Adhiniyam, 2023¹⁸ incorporates the meaning of estoppel as when one person either by his act or omission, or by declaration, has made another person believe something to be true and persuaded that person to act upon it, then in no case can he or his representative deny the truth of that thing later in the suit or in the proceedings. In simple words, estoppel means one cannot contradict, deny or declare to be false the previous representation or act done by him. Appellant failed to produce any material on record to show that, he ever disputed his relationship with the respondents prior to present proceeding. Thus, in consider opinion of this court, objection raised by Appellant qua legitimacy of respondents is barred by Doctrine of Estoppel.

121. Estoppel.--When one person has, by his declaration, act or omission, intentionally caused or permitted another person to believe a thing to be true and to act upon such belief, neither he nor his representative shall be allowed, in any suit or proceeding between himself and such person or his representative, to deny the truth of that thing.

Illustration: A intentionally and falsely leads B to believe that certain land belongs to A, and thereby induces B to buy and pay for it. The land afterwards becomes the property of A, and A seeks to set aside the sale on the ground that, at the time of the sale, he had no title. He must not be allowed to prove his want of title.

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38. Admittedly, respondent no.1 was born on 03.05.1947 i.e. much prior to the birth of the plaintiff/appellant namely Late Sh. Azad Singh who was born on 06.10.1954. It is also the admitted fact that, no dispute or complaint occurred during the lifetime of Late Sh. Sardar Singh who left for heavenly abode on 24.09.2012 and also to the fact that Late Dhan Kaur was always residing with Late Sardar Singh during his lifetime.

39. In para no. 5 of the plaint, appellant/plaintiff specifically pleaded as follows:

"5. That after the death of Attar Singh, widow Smt. Dhan Kaur extended illicit relations with deceased Sardar Singh, during the life time of his wife Smt. Bhateri and his son the plaintiff and begotten four daughters and two sons. Smt. Bhateri was pre-deceased to the deceased Sardar Singh expired on 27.01.1984. It is relevant to mention here that Smt. Bhateri, legally wedded wife of deceased Sardar Singh and the mother of the plaintiff strongly objected to the illicit relation between Smt. Dhankaur and her husband but could not do anything as the threats to be thrown out of the house were extended by her husband and Smt. Dhankaur.

MAXIM 'vigilantibus non dormientibus jura subveniunt'

40. "The law helps those who are vigilant" is a Latin maxim that means vigilantibus non dormientibus jura subveniunt. No plausible explanation given by the appellant for not challenging the legitimacy of the respondents after attaining age of maturity in the year 1972 till filing of the present suit i.e. 2014. Article 58 read with Article 59 of Limitation Act provides that period of limitation is 3 years to obtain declaration from the date of right to sue first accrued or when the facts entitle the RCA No. 1111/24 AZAD SINGH THROUGH L.R.S. V. DEVI SINGH Pg. no. 27 of 32 plaintiff for said relief. This court does not find merit in the submissions made by Ld. Counsel for appellant that right to sue accrues only after the demise of Late Sardar Singh and issuance of mutation certificate in favour of respondents as he was innocent person of 60 years age and couldn't suspect foul play of respondents. Section 17 of the Limitation Act¹⁹, which deals with the effect of fraud and mistake. Thus, when the plaintiff relies on Section 17(1) (b) of the Limitation Act asserting fraud or mistake, he has to state the date on which he has discovered the fraud or mistake, and also state that he could not have discovered the fraud or mistake with reasonable diligence on a date earlier than on which he has based his cause of action.

41. Admittedly, validity of marriage was never question during the lifetime of Late Sardar Singh. The general principle, which also manifests itself in Section 17 of the Limitation Act, is that every person is presumed to know his own legal right and title in the property, and if he does not take care of his own right and title to the property, the time for filing of the suit based on such a right or title to the property is not prevented from running against him. The provisions of Section 17(1) embody fundamental principles of justice and equity, viz. that a party should not be penalized for failing to adopt legal proceedings when the facts or the documents have been wilfully concealed from him and also

17. Effect of fraud or mistake.--(1) Where, in the case of any suit or application for which a period of Limitation is prescribed by this Act,--

(a) the suit or application is based upon the fraud of the defendant or respondent or his agent; or

(b) the knowledge of the right or title on which a suit or application is founded is concealed by the fraud of any such person as aforesaid; or

(c) the suit or application is for relief from the consequences of a mistake; or

(d) where any document necessary to establish the right of the plaintiff or applicant has been fraudulently concealed from him, the period of Limitation shall not begin to run until the plaintiff or applicant has discovered the fraud or the mistake or could, with reasonable diligence, have discovered it; or in the case of a concealed document, until the plaintiff or the applicant first had the means of producing the concealed document or compelling its production RCA No. 1111/24 AZAD SINGH THROUGH L.R.S. V. DEVI SINGH Pg. no. 28 of 32 that a party who had acted fraudulently should not be given the benefit of limitation running in its favour by virtue of such frauds.²⁰ However, in present matter, Appellant himself stated to not had any pressure from respondents

while signing mutation documents. Burden of proof in a civil case is to prove claim by a preponderance of the evidence. Under "rule of prudence" court make a decision based on what a reasonable person would do in similar circumstances, prioritizing caution and avoiding unnecessary risks. Thus, version of Appellants is illusive hence, lacks credibility.

42. Infact, careful perusal of testimony of PW1 reveals that same is not corroborated with the claim of the appellant. In his testimony, he admitted respondent no. 1 as his elder brother. He further admitted that, respondent no. 1 had given last rites and sacred fire to Late Sh. Sardar Singh. He further specifically admitted that no threat was given by Late Sardar Singh and Smt. Dhan Kaur during their lifetime and his mother never made any complaint against Sardar Singh or Dhan Kaur. PW1 further admits that in his childhood, whole family used to stay in one house including him, his mother, respondents, Dhan Kaur and Sardar Singh. Not only this, PW1 also admitted that at the time of signing of affidavit for mutation there was no pressure of the respondents. Most importantly, for the factum of Kareva Marriage, he specifically deposed that, "I have no personal knowledge about Kareva marriage, however my mother used to tell that no such marriage took place." PW1 further admitted the existence of custom of Kareva marriage, palla udana orchadar udana in their community.

Pallav Sheth v. Custodian and Others, (2001) 7 SCC 549 RCA No. 1111/24 AZAD SINGH THROUGH L.R.S. V. DEVI SINGH Pg. no. 29 of 32

43. It is well settled that Section 3(1) of the Limitation Act casts a duty upon the court to dismiss a suit or an appeal or an application, if made after the prescribed period, although, limitation is not set up as a defence. Thus, considering the facts and circumstances of this case, this court is of the opinion that, plaintiff is not entitled for declaratory relief as same is barred by limitation.

44. During the course of argument Ld. counsel for appellant submitted that, onus of issue no. (iv) was upon respondents but, they failed to discharge the same. However, this court is not inclined to accept this plea. It is settled law that, burden to proving facts raised upon the party which substantially asserts the affirmation of the issue²¹. Hon'ble Supreme Court in the matter of Anil Rishi Vs. Gurbaksh Singh²² specifically held that, A distinction exists between burden of proof and onus of proof. The right to begin follows onus probandi. It assumes importance in the early stage of a case. The question of onus of proof has greater force, where the question is, which party is to begin. Burden of proof is used in three ways: (i) to indicate the duty of bringing forward evidence in support of a proposition at the beginning or later, (ii) to make that of establishing a proposition as against all counter-evidence; and

(iii) an indiscriminate use in which it may mean either or both of the others. The elementary rule in Section 10¹²³ is inflexible. In terms of Anil Rishi Vs. Gurbaksh Singh (2006) 5 SCC 558.

(2006) 5 SCC 558.

Section 104, Bhartiya Sakshya Adhiniyam, 2023: Burden of proof. Whoever desires any Court to give judgment as to any legal right or liability dependent on the existence of facts which he asserts

must prove that those facts exist, and when a person is bound to prove the existence of any fact, it is said that the burden of proof lies on that person. Illustrations. (a) A desires a Court to give judgment that B shall be punished for a crime which A says B has committed. A must prove that B has committed the crime. (b) A desires a Court to give judgment that he is entitled to certain land in the possession of B, by reason of facts which he asserts, and which B denies, to be true.

RCA No. 1111/24 AZAD SINGH THROUGH L.R.S. V. DEVI SINGH Pg. no. 30 of 32 Section 10224 the initial onus is always on the plaintiff and if he discharges that onus and makes out a case which entitles him to a relief, the onus shifts to the defendant to prove those circumstances, if any, which would disentitle the plaintiff to the same. In the present proceedings appellant disputed the legitimacy of respondents but admittedly no material placed on record in support of their contention rather, PW1 testimony about factum/knowledge of 'kareva marriage' is purely based upon hearsay evidence hence, can't be relied upon.

45. Ld. Trial Court while adjudicating issue no. 4 rightly hold that, judgment passed by Hon'ble Supreme Court of India in Revanasiddappa (supra) is not applicable to the fact of the present case as plaintiff is disputing the factum of 'Kareva Marriage' i.e. stated to be held in 1946 which is much prior to the enactment of Hindu Marriage Act, 1955. Ld. Trial Court also rightly opinion that, since HMA do not have retrospective effect and give due weightage of custom and usage of the communities, it do not interfere in the customary relations established before passing of the Act.

A must prove the existence of those facts.

Section 105, Bhartiya Sakshya Adhiniyam, 2023: On whom burden of proof lies.

The burden of proof in a suit or proceeding lies on that person who would fail if no evidence at all were given on either side Illustrations: (a) A sues B for land of which B is in possession, and which, as A asserts, was left to A by the will of C, B's father. If no evidence were given on either side, B would be entitled to retain his possession. Therefore, the burden of proof is on A.

(b) A sues B for money due on a bond. The execution of the bond is admitted, but B says that it was obtained by fraud, which A denies. If no evidence were given on either side, A would succeed, as the bond is not disputed and the fraud is not proved. Therefore, the burden of proof is on B. RCA No. 1111/24 AZAD SINGH THROUGH L.R.S. V. DEVI SINGH Pg. no. 31 of 32

46. Further, Revanasiddappa (supra) brings no help to plaintiff as present suit is not for partition but, for declaration of respondents as illegitimate children born out of illicit relations of Late Sh. Sardar Singh with Late Smt. Dhan Kaur to which, this court has already given opinion in preceding paras that, suit of plaintiff was rightly dismissed by Ld. Trial Court.

CONCLUSION

47. Ergo, in view of above discussion and well settled preposition of law, in the considered opinion of this Court, there is no infirmity in the impugned order passed by Ld. Trial Court as the scope of

civil cases are circumscribed by the limitations, pleadings and nature of relief claimed. Hence, present appeal stands dismissed.

48. No order as to cost. Appeal file be consigned to record room.

Digitally signed by SHILPI M SHILPI Announced in open court JAIN M JAIN Date:

2025.01.31 on 31.01.2025 16:58:51 +0530 (SHILPI M JAIN) District Judge-05, South West District Dwarka Courts, New Delhi RCA No. 1111/24 AZAD SINGH THROUGH L.R.S. V. DEVI SINGH Pg. no. 32 of 32